ORDINANCE NO. 445
OF THE
CITY OF RECTOR

AN ORDINANCE TO REGULATE, MAINTAIN AND SUPERVISE THE INSPECTION OF SEWERS AND TO REGULATE THE DISPOSAL OF SEWAGE CHEMICALS, FLAMMABLE LIQUID AND TO PROVIDE A PENALTY, AND FOR OTHER PURPOSES, PROVIDING FOR AN EMERGENCY.

WHEREAS; Under the authority of the Arkansas State Plumbing Code the City of Rector, Arkansas, must implement a system for the safety of its citizens by regulating the use of the city sewers and for products that may be disposed of in the Rector sewer system by new and old construction.

WHEREAS; The City of Rector has had individuals that use the sewer system to dispose of flammable items that can cause severe damage and harm to the citizens of Rector.

WHEREAS; The City of Rector provides that to violate the Ordinance is a misdemeanor and punishable by a fine.

WHEREAS; The Rector Water Commissioner shall be the code enforcement officer and report and enforce any violation of this Ordinance.

THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, as follows:

1. No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance therein without first obtaining a written permit from the Water Commissioner.

2. There shall be two classes of building sewer permits: (1) for residential and commercial service , and (2) for service to establishments producing industrial wastes. In either case, the owner or his agent shall make application on a special form furnished by the City. The permit application shall be supplemented by any plans, specifications, or other information considered pertinent in the judgment of the Water Commissioner. A permit and inspection fee of $20.00, shall be paid to the City at the time the application is filed.

3. All costs and expenses incident to the installation and connection of the building sewer shall be born by the owner. The owner shall indemnify the city from any loss or damage that may directly or indirectly by occasioned by the installation of the building sewer.

4. A separate and independent building sewer shall be provided for every building; except where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear building through an adjoining alley, courtyard, or driveway. The building sewer from the front of the building may extend to the rear building and the whole considered as one building sewer.

5. Old building sewers may be used in connection with new buildings only when they are found, on examination and test by the Water Commissioner, to meet all requirements of this Ordinance.

6. The size, slope, alignment, materials of construction of a building sewer, and the methods to be used in excavating, placing of the pipe, joining, testing, and backfilling the trench, shall all conform to the requirements of the Building and Plumbing Code or other applicable rules and regulations of the City.

7. Whenever possible the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings in which any building drain is too low to permit gravity flow to the public sewer, sanitary sewage carried by such building drain shall be lifted by an approved means and discharge from the building.

8. No person shall make connection of roof downspouts, exterior foundation drains, or other sources of surface runoff or groundwater to building sewer of building drain which in turn is connected directly or indirectly to a public sanitary sewer.

9. The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing code or other applicable rules and regulations of the City. All such connections shall be made gastight and watertight. Any deviation from the prescribed procedures and material must be approved by the Water Commissioner before installation.

10. The applicant for the building sewer permit shall notify the Water Commissioner when the building sewer is ready for inspection and connection to the public sewer. The connection shall be made under the supervision of the Water Commissioner or his representative.

11. All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks,

parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the City.

12. No person shall discharge or cause to be discharged any stormwater, surfacewater, groundwater, roof runoff, subsurface drainage, uncontaminated cooling water, or unpolluted industrial process water to any sanitary sewer.

13. Stormwater and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as combined sewers or storm sewers or to a natural outlet approved by the Water Commissioner. Industrial cooling water or unpolluted process waters may be discharged, on approval of the Water Commissioner, to a storm sewer, combined sewer, or natural outlet.

14. No person shall discharge or cause to be discharged any of the following described waters or wastes to any public sewers:

A. Any gasoline, benzene, naptha, fuel oil, other flammable or explosive liquid, soil, or gas.

B. Any waters or wastes containing toxic or poisonous solids, liquids, or gases in sufficient quantity, either singly or by interaction with other wastes, to injure or interfere with any sewer treatment process, or any part of the sewer treatment facilities or sanitary sewerage works, or create any hazard in the receiving waters of the sewage treatment plant, including but not limited to cyanides in excess of two (2) mg/L CN in the wastes as discharged to the public sewer.

C. Any waters or wastes having a pH lower than 5.5 or having anyother corrosive property capable of causing damage or hazard to structures, equipment or personnel of the sewage works.

D. Solid or viscous substances in quantities or of such size capable of causing obstruction to the flow in sewers or pumping facilities, or other interference with the proper operation of the sewage works such as, but not limited to, ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, unground garbage, whole blood, paunch manure, hair and fleshings, entrails and paper dishes, cups, milk containers, etc., either whole or ground by garbage grinders.

15. No person shall discharge or cause to be discharged the following described substances, materials, waters, or wastes if it appears likely in the opinion of the Water Commissioner that such wastes can harm either the sewers, sewage treatment process, or equipment, having an adverse effect on the receiving stream, or can otherwise endanger life, limb, public property or constitute a nuisance. In forming his opinion as to the acceptability of these wastes, the Water Commissioner will give consideration to such factors as the quantities of subject wastes in relation to flows and velocities in the sewers, materials of construction of the sewers, nature of the sewage treatment process, capacity of the sewage treatment plant, degree of treatability of wastes in the sewage treatment plant, and other pertinent factor. The substances prohibited are:

A. Any liquid or vapor having a temperature higher than 150 degrees F. (65C).

B. Any water or wastes containing fats, wax, greases, or oils, whether mulsified or not, in excess of 100mg/L or containing substances which may solidify or become viscous at temperatures between 32 and 150 degrees F (O to 65 degrees C.)

C. Any garbage that has not been properly shredded. The installation and operation of any garbage grinder equipped with a motor of 3/4 horsepower (0.76 hp metric) or greater shall be subject to the review and approval of the City.

D. Any water or wastes containing strong acid, iron pickling wastes, or concentrated plating solution whether neutralized or not.

E. Any waters or wastes containing iron, chromium, copper, zinc, and similar objectionable or toxic substances; or wastes exerting an excessive chlorine requirement, to such degree that any such material received in the composite sewage at the sewage treatment works exceed the limits established by the City for such materials.

F. Any water or wastes containing phenols or other taste-odor producing substances, in such concentrate exceeding limits which may be established by the Water Commissioner as necessary, after treatment of the composite sewage, to meet the requirements of the state, federal, or other public agencies of jurisdiction for such discharge to the receiving waters.

G. Any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the Water Commissioner in compliance with applicable state or federal regulations.

H. Any water or wastes have a pH excess of 9.5.

I. Material which exert or cause: 1. Unusual concentrations of inert suspended solids (such as but not limited to Fullers's earth, lime slurries, and lime residues) or of dissolved solids (such as but not limited to sodium chloride, sodium sulfate). 2. Excessive discoloration (such as but not limited to dye, wastes and vegetable tanning solutions). 3. Unusual BOD, chemical oxygen demand, or chlorine requirements in such quantities as to constitute a significant load in the sewage treatment works. 4. Unusual volumes of flow or concentration of wastes constituting "slugs" as defined herein.

J. Waters or wastes containing substances which are not amenable to treatment or reduction by the sewage treatment process employed, or are amenable to treatment only to such degree that the sewage treatment plant effluent cannot meet the requirements of other agencies having jurisdiction over discharge to the receiving waters.

16. If any waters or wastes are discharged, or are proposed to be discharged to the public sewers which in the judgment of the Water Commissioner, may have a deleterious effect upon the sewage works, processes, equipment, or receiving waters, or which otherwise create a hazard to life or constitute a public nuisance, the Water Commissioner may: (a) reject the wastes, (b) require pretreatment to an acceptable condition for discharge to the public sewers, (c) require control over the quantities and rates of discharge, and/or (d) require payment to cover the added cost of handling, testing and treating the wastes not covered by existing taxes or sewer charges under the provisions of part 10 of this section.

If the Water Commissioner permits the pretreatment or equalization of waste flows, the design and installation of the plants and equipment shall be subject to the review and approval of the Water Commissioner and subject to the requirements of all applicable codes, ordinances and laws.

17. Greases, oil, and sand interceptors shall be provided when, in the opinion of the Water Commissioner, they are necessary for the proper handling of liquid wastes containing greases in excessive amounts, or any flammable wastes, sand, or other harmful ingredients; except that such interceptors shall not be required for private living quarters or dwelling units. All interceptors shall be of a type and capacity approved by the Water Commissioner and shall be located as to be readily and easily accessible for cleaning and inspection.

18. Where preliminary treatment or flow-equalizing facilities are provided for any waters or wastes, they shall be maintained continuously in satisfactory and effective operation by the owner at his expense.

19. When required by the Water Commissioner, the owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable control manhole together with such necessary meters and other appurtenances in the building sewer to facilitate observation, sampling, and measurement of the wastes. Such manhole, when required, shall be accessible and safely located and shall be constructed in accordance with plans approved by the Water Commissioner. The manhole shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times.

20. All measurements, tests, and analysis of the characteristics of waters and wastes to which reference is made in this chapter shall be determined and at the control manhole provided, or upon suitable manhole has been required, the control manhole shall be considered to be the nearest downstream manhole in the public sewer to the point at which the building sewer is connected. Sampling shall be carried out by customarily accepted methods to reflect the effect of constituents upon the sewage works and to determine the existence of hazards to life, limb, and property.

21. No statement contained in this section shall be construed as preventing any special agreement or arrangement between the City and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the City for treatment, subject to payment therefor by the industrial concern.

22. All new installation shall comply with Arkansas State Plumbing Code Regulations.

23. Violation of this Ordinance shall be a misdemeanor and the fine for each violation shall be Twenty-five ($25.00) to One-hundred Dollars ($100.00). Each day of such violation of this order shall constitute a separate offense.

EMERGENCY CLAUSE: Because of the immediate need to provide definition and permitted use of the sewer system of The City of Rector, and emergency is declared to exist and the Ordinance shall be in force and effect as of the date of its passage and first publication.

DATED this 7TH day of July, 1997.

Mayor Ron E. Kemp

ATTEST:

City Recorder Kenneth Burns